

VCU331598 Delayo, Raymond vs. Perfection Pet Foods, LLC

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-04

Motion: Defendants' Motion to Compel Arbitration

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Re: Delayo, Raymond vs. Perfection Pet Foods, LLC

Case No.: VCU331598

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Defendants' Motion to Compel Arbitration

Tentative Ruling: To grant the motion and delegate issues of arbitrability to the arbitrator.

Background Facts

In this matter, Plaintiff sues Defendants Perfection Pet Foods, LLC, Western Milling, LLC, Viserion Milling, LLC, Post Holdings, Inc., Post Consumer Brands, LLC, and Post Brands Pet Care, LLC (collectively "Corporate Defendants") and Eric Batchelor ("Defendant Bachelor") (collectively, Corporate Defendants and Defendant Bachelor to be referred to as "Defendants") as to the following:

1. Disability Discrimination (Gov. Code § 12940(a))
2. Failure to Accommodate (Gov. Code § 12940(m))
3. Failure to Engage in Interactive Process (Gov. Code § 12940(n))
4. Retaliation (Gov. Code § 12940(h))
5. Failure to Prevent Discrimination & Retaliation (Gov. Code § 12940(k))

6. Whistleblower Retaliation (Lab. Code § 1102.5)
7. Interference with CFRA Rights (Gov. Code § 12945.2)
8. Invasion of Privacy (Cal. Const., Art. I, § 1)
9. Violation of CMIA (Civ. Code § 56 et seq.)
10. Intentional Infliction of Emotional Distress
11. Violation of the Bane Act (Civ. Code § 52.1)
12. Failure to Pay Wages (Lab. Code §§ 201-203, 510, 1194)
13. Failure to Provide Meal & Rest Periods (Lab. Code §§ 226.7, 512)
14. Failure to Reimburse Business Expenses (Lab. Code § 2802)
15. Failure to Maintain Accurate Records (Lab. Code §§ 226, 1174)
16. Unfair Business Practices (Bus. & Prof. Code § 17200)

Defendants move to compel arbitration of these claims pursuant to a document entitled "MUTUAL AGREEMENT TO ARBITRATE EMPLOYMENT DISPUTES" (hereinafter "Agreement") purportedly electronically executed by Plaintiff during the onboarding process.

In opposition, Plaintiff argues waiver via Defendants' conduct in prosecuting this litigation, that the non-signatories lack standing to enforce the Agreement, that the scope of the Agreement does not cover each claim in the complaint and that the motion should be denied to preclude conflicting rulings.

Facts –Delegation Clause

Though unaddressed in Defendants' motion to compel and the opposition, the Court notes the following term within the Agreement stating:

"8. DELEGATION OF AUTHORITY: In addition to the power to resolve Employment Claims, the arbitrator shall have exclusive authority to resolve any dispute concerning or relating to the formation, meaning, interpretation, applicability, or enforceability of this Agreement."

Authority and Analysis - Delegation Clause

Malone v. Superior Court (2014) 226 Cal.App.4th 1551 summarizes the applicable analysis with respect to delegation clauses:

"A delegation clause requires issues of interpretation and enforceability of an arbitration agreement to be resolved by the arbitrator. Delegation clauses have the potential to create problems of circularity. For example, suppose an arbitration agreement delegates the issue of enforceability to the arbitrator. If the arbitrator concludes that the arbitration agreement is, in fact, not enforceable, this would mean that the entire agreement, including the delegation clause, is unenforceable—a finding that would undermine the arbitrator's jurisdiction to make that finding in the first place. For this reason, courts have treated the delegation clause as a separate agreement to arbitrate solely the issues of enforceability...

"For this reason, when a party is claiming that an arbitration agreement is unenforceable, it is important to determine whether the party is making a specific challenge to the enforceability of the delegation clause or is simply arguing that the agreement as a whole is unenforceable. If the party's challenge is directed to the agreement as a whole—even if it applies equally to the delegation clause—the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable. In contrast, if the party is making a specific challenge to the delegation clause, the court must determine whether the delegation clause itself may be enforced (and can only delegate the general issue of enforceability to the arbitrator if it first determines the delegation clause is enforceable). (Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 70)"

Here, clear and unmistakable language is found in the section of the Agreement quoted above.

Challenge to Agreement in its Entirety as Unenforceable

Here, Plaintiff has challenged the Agreement as unenforceable in its entirety on a number of grounds, including defenses of waiver, issues as to enforceability by certain parties and the scope of the Agreement as compared to the causes of action.

The Court, therefore, interprets this challenge, under Rent-A-Center and Malone, above, a challenge "...directed to the agreement as a whole—even if it applies equally to the delegation clause—the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable."

Therefore, the Court will sever out the delegation clause and enforce it.

As such, the Court grants the motion and compels issues of interpretation, applicability, enforceability, and formation to the arbitrator pursuant to the Agreement.

The Court further stays this matter pending the arbitrator's rulings on these issues.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.